[redacted]

Department of State,

Washington, February 3, 1903.

FOR RELS. 1902

Robert S. McCormick, Esquire,

etc., etc., etc.,

Vienna.

Sir:

I have to enclose herewith a copy of a Memorandum, expressing the views of the United States in regard to the proposed Convention and Arrangement between the Chinese and Russian Governments respecting Manchuria, which has been cabled to the American Missions at Peking and St. Petersburg, You will take early occasion to acquaint the Government to which you are accredited with the text of thie Memorandum.

I am, Sir,

Your obedient servant

J O H N H A Y .

Enclosure:

Memorandum, February 1, 1902, (Chinese Affairs.)

(over)

Copy of the above instruction sent to:

Stanford Newel, Esquire,
etc., etc., etc.,
The Hague.

Bellamy Storer, Esquire,
etc., etc., etc.,
Madrid.

His Excellency
Charlemagne Tower,
etc., etc., etc., St. Petersburg.

His Excellency
George von L. Meyer,
etc, etc., etc., Rome.

His Excellency
Andrew D. White,
etc., etc., etc., Berlin.

His Excellency
Joseph H. Choate,
etc., etc., etc., London.

Edwin H. Conger, Esquire,
etc., etc., etc.,
Peking.

His Excellency
Horace Porter,
etc., etc., etc.,
Paris.

Memorandum respecting Manchuria.—February 1, 1902.

DEPARTMENT OF STATE,
Washington, February 1, 1902.

An agreement by which China cedes to any corporation or company the exclusive right and privilege of opening mines, establishing railroads, or in any other way industrially developing Manchuria, can but be viewed with the gravest concern by the Government of the United States. It constitutes a monopoly, which is a distinct breach of the stipulations of treaties concluded between China and foreign Powers, and thereby seriously affects the rights of American citizens; it restricts their rightful trade and exposes it to being discriminated against, interfered with, or otherwise jeopardized and strongly tends towards permanently impairing the sovereign rights of China in this part of the Empire, and seriously interferes with her ability to meet her international obligations. Furthermore, such concession on the part of China will undoubtedly be followed by demands from other Powers for similar and equal exclusive advantages in other parts of the Chinese Empire, and the inevitable result must be the complete wreck of the policy of absolute equality of treatment of all nations in regard to trade, navigation, and commerce within the confines of the Empire.

On the other hand, the attainment by one Power of such exclusive privileges for a commercial organization of its nationality conflicts with the assurances repeatedly conveyed to this Government by the Imperial Russian Ministry of Foreign Affairs of the Imperial Government's intention to follow the policy of the open door in China, as advocated by the Government of the United States and acccpted by all the Treaty Powers having commercial interests in that Empire.

It is for these reasons that the Government of the United States, animated now, as in the past, with the sincerest desire of insuring to the whole world the benefits of full and fair intercourse between China and the nations on a footing of equal rights and advantages to all, submits the above to the earnest consideration of the Imperial Governments of China and Russia, confident that they will give due weight to its importance, and adopt such measures as will relieve the just and natural anxiety of the United States.